



Outlook

Informational Update: Community Center Closure and Threat of Litigation

From Stefen Wynn <StefenW@townofpaonia.com>

Date Tue 4/7/2026 11:45 AM

To Stefen Wynn <StefenW@townofpaonia.com>

Cc Matt Laiminger <mlaimingerppd@townofpaonia.com>; Paonia <paonia@townofpaonia.com>; Daoine B <DaoineB@townofpaonia.com>

 2 attachments (923 KB)

Letter of about Smith Center Key.pdf; PC Notice of Loss 4.7.2026 Key to Community Center.pdf;

Mayor & Trustees,

Please see attached information related to the Ellen Hansen Smith Community Center. To date, the Town has received one written communication that includes a threat of litigation related to the temporary closure of the facility. The correspondence, dated April 7, 2026, requests access to the facility and asserts potential claims against both the Town and the Town Administrator if access is not granted. As you're aware, the Community Center has been closed to the public in order to address documented life, health, and safety concerns. These include necessary repairs to electrical systems, plumbing, and ceiling conditions. The Town has already completed roof repairs and is actively working through the remaining items in a structured and compliant manner. Electrical improvements are currently pending approval and are scheduled for discussion at the April 14th Board of Trustees meeting.

In response, staff has taken appropriate risk management steps and has formally notified CIRSA through a Notice of Loss documenting the threat of litigation and outlining the Town's actions to protect public safety while repairs are underway. This ensures that the Town's insurer is aware of the situation and that any potential claims are properly tracked and managed. It is important to emphasize that the Town's decision to close the facility is grounded in its obligation to protect life, health, and safety. Allowing public access while known deficiencies exist would expose the Town to significantly greater liability. Staff will continue to advance repairs as expeditiously as possible and will keep the Board informed of any material developments.

In Public Service,



Stefen Wynn, M.P.A.
ICMA-CM
**Paonia Town Administrator
& Treasurer**

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“Words or phrases cannot be read in isolation but must be read within the context of the entire statutory scheme.”

Thermo Dev., Inc. v. Central Masonry Corp., 195 P.3d 1166, 1168 (Colo. App. 2008).

Relinquish the Key

April 7, 2026

The key for the showers at the Recreational Center in Paonia is for the Public, paid for by Public taxes. I (John Q. Public) was told by the Town Administrator around the 1st of March that they were working on the electrical system and that it would not be completed until June 1st.

A friend told me on 4-6-26 that they were not working on the electricity. Now I want the key.

1. Hand over the key or...
2. Hand over the Electrical Requisition and their contract to prove to the Public that they are, in fact, working on the electricity. A paper stating the start and finishing dates.
3. If this does not happen, then I will submit a FOIA request for the Electrical Requisition and find out who is lying to the Public.
4. The Town Administrator may be held personally liable, as well as the Town of Paonia itself, for:
 1. Lying to the Public (Contempt)

2. Punitive Damages

3. Discrimination

against the Public and may be sued for exemplary damages.

Treat all the public with respect.

Submitted by,

John Q. Public (for now).



NOTICE OF LOSS/ACCIDENT

MEMBER INFORMATION

Member Name		Member Claim Number - <i>Optional</i>	
Town of Paonia			
Member Address		Contact Person	Phone
214 Grand Ave. PO BOX 460 Paonia, CO 81428		Stefen Wynn	(970) 527-4101

LOSS INFORMATION

Date of Loss	Time of Loss	Location	Department Code	Division Code
04/07/2026	0948		1. Administ/Finance	4. City Manager
Description of Loss - <i>Do Not Use "See Attached"</i>				
Threatened of third lawsuit this week by a Resident due to the Ellen Hansen Smith Community Center being locked and inaccessible to the public while repairs are made to electrical, plumbing, and a contractor is hired to make ceiling repairs.				

INJURIES - IF ANY

Name	Address	Age	Phone	Injury	Your Vehicle	Other Vehicle
					☐ YES ☐ NO	☐ YES ☐ NO
					☐ YES ☐ NO	☐ YES ☐ NO

YOUR PROPERTY DAMAGE - IF ANY (NON-AUTO)

Property Description & Location	Describe Damage

PROPERTY DAMAGE OF OTHERS - IF ANY (NON-AUTO)

Property Description & Location	Describe Damage
Owner Name & Address	Phone

WITNESSES - IF ANY

Name	Address	Phone	Location (Specify)

IF THIS IS AN AUTO ACCIDENT, COMPLETE SECTION BELOW

Member Vehicle (Year, Make, Model)		License Plate Number		VIN Number	
Driver's Name & Address		Age	Phone (Primary)	Phone (Secondary)	Unit Number
Describe Damage		Where Can Car Be Seen?		Police Investigation?	Officer
				☐ YES ☐ NO	
				Agency	
Other Vehicle (Year, Make, Model)		License Plate Number		Insurance Carrier	
Owner Name & Address		Age	Phone (Primary)	Phone (Secondary)	
Driver Name & Address		Age	Phone (Primary)	Phone (Secondary)	
Describe Damage		Where Can Car Be Seen?			

ADDITIONAL INFORMATION

Date	Reported By	Reported To	Your Name
04/07/2026	Daoine Bachran	Stefen Wynn	Stefen Wynn

By completing and submitting this form to CIRSA electronically, you acknowledge that you have the requisite authority to submit this form for your entity. You understand that your submission of this form constitutes your signature.